

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

13. TODD STANLEY V. HANNAH COLE

24FL0221

On January 14, 2026, Petitioner filed a Request for Order seeking custody and visitation orders, a stay on proceedings, and “correction and clarification of the record.” On January 21st he filed another RFO, this time seeking reconsideration of the court’s prior orders. Both RFOs were served on March 3rd along with the Notice of Tentative Ruling and a blank FL-320.

Respondent filed an RFO on February 2nd seeking to have Petitioner deemed a vexatious litigant. The RFO and all other required documents were served on February 4th.

Respondent’s Objections to Declaration and Exhibits was filed and served on March 13th along with her Responsive Declaration to Request for Order.

On March 23rd, Petitioner filed a Supplemental Declaration of Todd Stanley in Support of Request for a Stay Pending Appeal and Reconsideration, and in Opposition to Objections, Motion to Strike and Vexatious Litigant Request. It is unclear to the court if this is intended to be a Responsive Declaration or a Reply Declaration; regardless, it is untimely. Civil Procedure section 1005(b) states all opposition papers are to be filed no later than nine court days prior to the hearing and all reply papers are to be filed at least five court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 13th the last day to file a Responsive Declaration and March 19th the last day to file a Reply declaration. Additionally, all Responsive Declarations are required to utilize the mandatory FL-320 form, which Petitioner has not done. For the foregoing reasons the court has not read or considered Petitioner’s March 23rd declaration.

Petitioner’s RFOs

Petitioner is requesting the following: (1) stay all relocation orders and enforcement dates pending appellate review of the December 29, 2025 order; alternatively, extend the January 29, 2026 relocation date to no earlier than May 7, 2026; (2) correct and clarify the record regarding issues affecting Family Code § 3044 and the court’s best interest findings; and (3) reconsider the court’s January 14, 2026 ruling denying Petitioner’s ex parte request.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

Respondent opposes the requests and asks that they be denied as res judicata. She further requests \$5,000 in attorney fees for having to respond to Petitioner's duplicative motion. She has submitted several objections the rulings on which are attached hereto.

First and foremost, the Motion for Reconsideration of the court's "ruling issued on January 14, 2026" is denied. On January 14th the court ruled on Petitioner's request for an Order Shortening Time (OST), it did not address custody or visitation. Moreover, the OST was requested on issues that are pending before the court for this hearing. As such, any motion to reconsider the court's denial of the OST is moot and therefore, denied.

Regarding the request to "correct and clarify the record" it is unclear exactly what Petitioner is requesting. Presumably he would like the court to consider the evidence he submitted in his declaration however, he does not ask the court to actually reconsider or vacate its prior ruling. Nevertheless, the court finds that all of the issues raised in Petitioner's RFO have already been ruled upon. Petitioner does not provide the court with any new or additional evidence that *could not* have been presented at trial or that has not already been considered by the court. As such, this request is denied.

Likewise, the request for a stay is denied. It is well settled law that "[t]he perfecting of an appeal shall not stay proceedings as to those provisions of a judgment or order which award, change, or otherwise affect the custody, including the right of visitation, of a minor child in any civil action..." Cal. Civ. Pro. § 917.7. The trial court maintains discretion over whether or not to stay such proceedings. *Id.* Here, the court does not find grounds to issue a stay on proceedings. This is especially in light of the fact that there was an automatic 30-day stay, which has already expired, and an additional 3-day stay issued by the appellate court. The court does not find grounds to further stay the proceedings. Accordingly, the request is denied.

Respondent's request for sanctions is granted. An award for attorney's fees and sanctions may be made pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a).

Here, Petitioner filed an RFO on January 12th, an amended RFO on January 12th, an Application for an Order Shortening Time on January 13th, an RFO on January 14th, an ex

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

parte request on January 20th, and an RFO on January 21st. Most of these RFOs seek to litigate and re-litigate the same issues over and over again. Petitioner's repeated filings have unquestionably caused Respondent to incur unnecessary attorney's fees. Petitioner's actions fall squarely within the purview of Section 271 and as such the request for sanctions is granted. Petitioner is ordered to pay Respondent's attorney \$5,000 as and for sanctions pursuant to Family Code § 271. Payment may be made in one lump sum or in monthly increments of \$250 commencing on April 1, 2026 and continuing on the 1st of each month until paid in full. If any payment is missed or late the entire amount shall become immediately due and payable.

Vexatious Litigant

Respondent asks that Petitioner be declared a vexatious litigant. She further requests that all issues set for March 26th be continued to May 7th due to the unavailability of her counsel.

While Respondent concedes that a party represented by counsel cannot be deemed a vexatious litigant and she notes her belief that Petitioner was represented by counsel as of March 13th she is still seeking to have the court issue the vexatious litigant designation. The court's file does not reflect that Petitioner is currently represented. According to the Notice of Limited Scope Representation in the court's file, Ms. Bentley was retained by Petitioner only "up to and including the hearing set for 2/19/26." Additionally, even if he were represented as of today's date, all of the filings at issue were made by Petitioner as a pro se litigant and any vexatious litigant designation would apply to him only in his capacity as a pro se litigant. As such, the court does find grounds to proceed with the motion on the merits.

The purpose of the vexatious litigant statute is to curb the misuse of the judicial process by self-represented litigants who repeatedly file unmeritorious litigation, or motions, or who repeatedly attempt to relitigate issues that have already been decided by the court. Shalant v. Girardi, 51 Cal. App. 4th 1164 (2011). To be declared a vexatious litigant the self-represented party must meet at least one of four statutory definitions. These definitions include an individual who "...repeatedly relitigates or attempts to relitigate, in propria persona, either (1) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined;" or one who "repeatedly files unmeritorious motions, pleadings, or

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” Cal. Civ. Pro. § 391(b)(2) & (b)(3). A finding of as few as three motions on the same issue has been upheld as grounds for a vexatious litigant ruling. Goodrich v. Sierra Vista Reg’l Med. Ctr., 246 Cal. App. 4th 1260 (2016).

Given the sheer number of motions filed by Petitioner within the last year, almost all of which have been found to be without merit, Petitioner’s actions are clearly those of a vexatious litigant. In fact, on October 23, 2025, the court advised Petitioner to refrain from filing further baseless motions. Nevertheless, as it stands today Petitioner has filed 7 RFOs in the past year, most of which were filed on an ex parte basis and almost all of which have been denied. He also filed a request for a Domestic Violence Restraining Order which was denied and was seemingly filed solely to affect the court’s custody rulings. In light of Petitioner’s repeated requests to litigate the same issues without any legal basis to do so, his misuse of the ex parte process, and his continual filing of meritless RFOs, it stands to reason that Petitioner is misusing the litigation process and therefore a vexatious litigant designation is proper.

Petitioner is hereby deemed a vexatious litigant. Petitioner is prohibited from making any in propria persona filing of any new litigation, petition, application, or motion in the State of California without first obtaining leave of the presiding justice where the litigation is proposed to be filed. Disobedience of this order may be punishable by contempt of court.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT’S RULINGS ON RESPONDENT’S OBJECTIONS ARE ATTACHED HERETO. PETITIONER’S JANUARY 14TH RFO AND HIS JANUARY 21ST RFO ARE BOTH DENIED IN THEIR ENTIRETY.

RESPONDENT’S REQUEST FOR SANCTIONS IS GRANTED. PETITIONER IS ORDERED TO PAY RESPONDENT’S ATTORNEY \$5,000 AS AND FOR SANCTIONS PURSUANT TO FAMILY CODE § 271. PAYMENT MAY BE MADE IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$250 COMMENCING ON APRIL 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL. IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

PETITIONER IS HEREBY DEEMED A VEXATIOUS LITIGANT. PETITIONER IS PROHIBITED FROM MAKING ANY IN PROPRIA PERSONA FILING OF ANY NEW LITIGATION, PETITION, APPLICATION, OR MOTION IN THE STATE OF CALIFORNIA WITHOUT FIRST OBTAINING LEAVE OF THE PRESIDING JUSTICE WHERE THE LITIGATION IS PROPOSED TO BE FILED. DISOBEDIENCE OF THIS ORDER MAY BE PUNISHABLE BY CONTEMPT OF COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

1 “PETITIONER’S MOTION FOR STAY OF RELOCATION PENDING APPEAL” beginning on
2 page 1 of the drafted pleading:

- 3 1. Page 1, lines 19-21: Objection and move to strike as hearsay (EC¹ §1200), lack of
4 foundation (EC §403), and assumes facts not in evidence: “In light of law-
5 enforcement and CPS findings of no risk, neutral supervised-visitation reports
6 documenting safe, appropriate contact, and Respondent’s September 16, 2025
7 Utah conviction for child-abuse-related conduct against the parties’ son...”

8 a. Objection X SUSTAINED OVERRULED

- 9
10 2. Page 3, lines 6-8: Objection and move to strike as hearsay (EC §1200), lack of
11 foundation (EC §403), and assumes facts not in evidence: “Dr. Davis paused the
12 evaluation – in direct response to the unresolved conflict issues and the
13 problematic stipulation that Petitioner had been forced to sign under duress, nor
14 primarily due to “scope and ability-to-pay concerns.””

15 a. Objection X SUSTAINED OVERRULED

- 16
17 3. Page 4, lines 2-6: Objection and move to strike as hearsay (EC §1200), assumes
18 facts not in evidence, lack of foundation (EC §403), and misstates the testimony
19 and record from trial, the entire paragraph starting with “At the December 15-17,
20 2025 trial...”.

21 a. Objection SUSTAINED X OVERRULED

- 22
23 4. Page 4, lines 13-15: Objection and move to strike as hearsay (EC §1200), assumes
24 facts not in evidence, lack of foundation (EC §403), and misstates the testimony

25
26
27 ¹ Citations noted as “EC” are to the Evidence Code.

1 and record from trial the statements starting with “These findings are contrary ...”
2 and ending with “... deemed unnecessary.”

3 a. Objection X SUSTAINED OVERRULED
4

5 5. Page 4, lines 25-28, and Page 5, lines 1-2: Objection and move to strike as hearsay
6 (EC §1200), lack of foundation (EC §403), and assumes facts not in evidence, the
7 entire paragraph starting with “At the same time...”

8 a. Objection SUSTAINED X OVERRULED
9

10 6. Page 5, lines 18-22: Objection and move to strike as hearsay (EC §1200), lack of
11 foundation (EC §403), and assumes facts not in evidence the entire paragraph
12 starting with “Criminal proceedings...”

13 a. Objection X SUSTAINED OVERRULED
14

15 7. Page 8, lines 5-7: Objection and move to strike as hearsay (EC §1200), lack of
16 foundation (EC §403), and assumes facts not in evidence the statements starting
17 with “Criminal proceedings” and ending with “Family Code sections 3020 and
18 3044”.

19 a. Objection SUSTAINED X OVERRULED
20

21 8. Page 8, lines 9-10: Objection and move to strike as hearsay (EC §1200), and lack
22 of foundation (EC §403) the statement starting with “On September 9, 2025”, and
23 ending with “ability-to-pay concerns”.

24 a. Objection X SUSTAINED OVERRULED
25

26 9. Page 8, lines 15 -16: Objection and move to strike as hearsay (EC §1200), lack of
27 foundation (EC §403), and misstates the testimony at trial the statements starting
28

1 with "At the December 15-17, 2025 trial", and ending with "...ongoing
2 investigation".

3 a. Objection _____ SUSTAINED X OVERRULED

4 10. Page 8, lines 20-21: Objection and move to strike as hearsay (EC §1200) and lack
5 of foundation the statement (EC §403) "Deputy McLean's email".

6 a. Objection X SUSTAINED _____ OVERRULED

7 11. Page 8, lines 22-23: Objection and move to strike as hearsay (EC §1200) and lack
8 of foundation (EC §403) the statement starting with "Recent supervised-visitation
9 reports" and ending in "...safety concerns."

10 a. Objection X SUSTAINED _____ OVERRULED

11 12. Exhibit A: Objection and move to strike as hearsay (EC §1200) and lacks
12 authentication (EC §§1400-1401).

13 a. Objection X SUSTAINED _____ OVERRULED

14 13. Exhibit C: Objection to characterization of contents of email as improper narrative;
15 the email speaks for itself.

16 a. Objection X SUSTAINED _____ OVERRULED

17 14. Exhibit G: Objection and move to strike as hearsay (EC §1200) and lacks
18 authentication (EC §§1400-1401).

19 a. Objection _____ SUSTAINED X OVERRULED

20 15. Exhibit I: Objection and move to strike as hearsay (EC §1200).

21 a. Objection _____ SUSTAINED X OVERRULED

1 16. Exhibit J: Objection and move to strike as improper narrative, assumes facts not in
2 evidence.

3 a. Objection _____ SUSTAINED X OVERRULED

4 17. Exhibit L: Objection and move to strike as hearsay (EC §1200).

5 a. Objection X SUSTAINED _____ OVERRULED

6 18. Exhibit M: Objection and move to strike as hearsay (EC §1200) and lacks
7 authentication (EC §§1400-1401).

8 a. Objection _____ SUSTAINED X OVERRULED

9 19. Exhibit O: Objection and move to strike as improper narrative, assumes facts not
10 in evidence.

11 a. Objection _____ SUSTAINED X OVERRULED

12 20. Exhibit P: Objection and move to strike as hearsay (EC §1200).

13 a. Objection _____ SUSTAINED X OVERRULED

14
15
16 Evidence Code §1200 provides that hearsay is “evidence of a statement that was made
17 other than by a witness while testifying at the hearing and that is offered to prove the truth of the
18 matter stated” and is inadmissible. Though declaration or affidavit use is common in motion
19 practice, it is not a vehicle in which a party may seek to introduce evidence subject to objection as
20 a circumvention of the formal rules of evidence.² The court has found proper to sustain objections
21 to a party declaration that contains hearsay statements made by third-parties³, and requires
22 consideration of properly raised objections to such statements prior to consideration of the
23 evidence⁴.
24

25 _____
26 ² See Elkins v. Superior Court (2007) 41 Cal.4th 1337.

27 ³ Huntsman-West Foundation v. Smith (2024) 104 Cal.App.5th 1117.

⁴ Brown v. Goldstein (2019) 34 Cal.App.5th 418.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

14. ANNIE R. ADAMS V. CHARLES D. MEINTZ

25FL0677

On October 14, 2025, Petitioner filed a Request for Order (RFO) seeking spousal support and a variety of other orders. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on October 17th.

A Judgment was entered on March 20, 2026. The court finds the RFO to be moot and as such, drops the matter from calendar.

TENTATIVE RULING #14: THE RFO IS MOOT AND AS SUCH, DROPPED FROM CALENDAR.

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